

**SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS**

=====X  
**ALLISON KEMP,**

Plaintiff(s),

-against-

**THE CITY OF NEW YORK, NEW YORK CITY  
POLICE DEPARTMENT, P.O. MICHAEL KOVALIK and  
P.O. "JOHN DOE", (An unidentified police officer  
involved in the sexual assault of the plaintiff),**

Defendant(s)  
=====X

**TO THE ABOVE NAMED DEFENDANT(S)**

**INDEX NO.:**

**Date Filed:**

**SUMMONS**

**The Basis of Venue:  
Where the cause of action  
arose.**

**YOU ARE HEREBY SUMMONED** to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: New York, New York  
December 7, 2017

  
\_\_\_\_\_  
Habib George, Esq.  
**ANREDER & GEORGE, ESQS.**  
Attorneys for Plaintiff  
Office and Post Office Address  
143 West 29<sup>th</sup> Street, Suite 1104  
New York, New York 10001  
(212) 967-2011

Defendant's Address:

**THE CITY OF NEW YORK  
100 Church Street  
New York, NY 10007**

**NEW YORK CITY POLICE DEPARTMENT  
100 Church Street  
New York, NY 10007**

**P.O. MICHAEL KOVALIK  
c/o NYPD 67<sup>th</sup> Precinct  
2820 Snyder Avenue  
Brooklyn, NY 11226**

**P.O. "JOHN DOE"  
c/o NYPD 67<sup>th</sup> Precinct  
2820 Snyder Avenue  
Brooklyn, NY 11226**

SUPREME COURT OF THE STATE OF NEW YORK  
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ALLISON KEMP,

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Plaintiff(s),

-against-

THE CITY OF NEW YORK, NEW YORK CITY  
POLICE DEPARTMENT, P.O. MICHAEL KOVALIK and  
P.O. "JOHN DOE", (An unidentified police officer  
involved in the sexual assault of the plaintiff),**VERIFIED  
COMPLAINT**Defendant(s)  
=====X

Plaintiff, by her attorneys, ANREDER & GEORGE, ESQS, as and for her Verified  
Complaint, at all times hereinafter mentioned, upon information and belief, alleges:

AS AND FOR A FIRST CAUSE OF ACTION

1. That at all of the times hereinafter alleged, the plaintiff, ALLISON KEMP, was and is a resident of the County of Kings, City and State of New York.
2. That at all times hereinafter alleged, and upon information and belief, the defendant, THE CITY OF NEW YORK, was and still is a public authority duly constituted and existing under and by virtue of the laws of the State of New York.
3. That at all times hereinafter alleged, and upon information and belief, the defendant, THE CITY OF NEW YORK, was a municipal corporation duly organized and existing under and by virtue of the Laws of the State of New York.
4. That at all times hereinafter alleged, and upon information and belief, the defendant,

NEW YORK CITY POLICE DEPARTMENT, was and still is a public authority duly constituted and existing under and by virtue of the laws of the State of New York.

5. That at all times hereinafter alleged, and upon information and belief, the defendant, NEW YORK CITY POLICE DEPARTMENT, was and still is a municipal corporation duly organized and existing under and by virtue of the Laws of the State of New York.

6. That at all times hereinafter alleged, and upon information and belief, the defendant, NEW YORK CITY POLICE DEPARTMENT, was and still is an agency of the defendant, THE CITY OF NEW YORK.

7. That on or about December 8, 2016, a Notice of Claim was served on the defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, prior to the commencement of this action.

8. That on or about December 8, 2016, the plaintiff, herein duly presented in writing to the defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, the claim for damages herein set forth and upon which this action is founded and that said claim was presented for adjustment.

9. That more than 30 days have elapsed since the said Notice of Claim was served upon the defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, and the defendants have failed and refused to make adjustment of any claim set forth.

10. That a hearing pursuant to Section 50(h) of the General Municipal Law was held on

October 25, 2017.

11. That all conditions precedent to the bringing of this action have been complied with.

12. That this action was commenced within one year and ninety (90) days after the accrual of the cause of action herein.

13. Defendant, MICHAEL KOVALIOK, was a police officer employed by the defendant, NEW YORK CITY POLICE DEPARTMENT.

14. Defendant, MICHAEL KOVALIOK, was a police officer employed by the defendant, NEW YORK CITY POLICE DEPARTMENT, and assigned to the 67<sup>th</sup> Precinct.

15. Defendant, P.O. "JOHN DOE", was a police officer employed by the defendant, NEW YORK CITY POLICE DEPARTMENT.

16. Defendant, P.O. "JOHN DOE", was a police officer employed by the defendant, NEW YORK CITY POLICE DEPARTMENT, and assigned to the 67<sup>th</sup> Precinct.

17. Plaintiff sues each and every defendant (except THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT) in both their individual and official capacity.

18. That at all times at all of the times hereinafter alleged, and upon information and belief, the defendant police officers acted within the scope of their duties as employees, agents and officials of the defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT.

19. That at all times hereinafter alleged, and upon information and belief, the defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, employed various personnel including the police officers, law enforcement agents, employees and personnel mentioned in this complaint.

20. That at all times hereinafter alleged, and upon information and belief, the defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, employed various personnel including law enforcement agents and officials, police officers, corrections department personnel and others hereinbelow referred to.

21. That on or about September 10, 2016, the plaintiff, ALLISON KEMP, was arrested by the defendants, their agents, servants and/or employees.

22. That on or about September 10, 2016, the plaintiff, ALLISON KEMP, was in the exclusive custody and/or control of defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, P.O. MICHAEL KOVALIK and P.O. "JOHN DOE."

23. That on or about September 10, 2016, and at all times mentioned, the plaintiff, ALLISON KEMP, was escorted to Central Booking located at 120 Schermerhorn Street, Brooklyn, New York by defendants, P.O. MICHAEL KOVALIK and P.O. "JOHN DOE."

24. On information and belief, during all the times mentioned herein, it was the duty of the defendants, THE CITY NEW YORK, NEW YORK CITY POLICE DEPARTMENT, P.O. MICHAEL KOVALIK and P.O. "JOHN DOE", their agents and/or employees to keep their suspect, including the plaintiff, ALLISON KEMP, reasonably safe at all times, and to intercede and prevent crime and misconduct committed by other police officers.

25. That on or about September 10, 2016, the plaintiff was a restrained back seat passenger in a New York City Police Department vehicle while being transported to Central Booking.

26. That on or about September 10, 2016, the plaintiff was a restrained back seat passenger in a New York City Police Department vehicle with the defendants P.O. MICHAEL KOVALIK and P.O. "JOHN DOE", while being transported to Central Booking.

27. That on or about September 10, 2016, the plaintiff who was handcuffed in back of said vehicle, was sexually harassed, groped, molested, assaulted and sodomized by defendant, P.O. MICHAEL KOVALIK.

28. That on or about September 10, 2016, the plaintiff who was handcuffed in back of said vehicle, was sexually harassed, groped, molested, assaulted and sodomized by defendants, P.O. MICHAEL KOVALIK, P.O. "JOHN DOE", and other unknown agents and/or employees of the defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT.

29. That as a result of the sexual assault which the plaintiff suffered, plaintiff's health was and is impaired, plaintiff suffered and continues to suffer great mental distress, was caused to and continues to endure extreme pain and discomfort, post-traumatic stress disorder, rape trauma syndrome, depression, complex post-traumatic stress disorder and other physical distress.

30. That by reason of the foregoing, the plaintiff, ALLISON KEMP, was damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION

31. Plaintiff repeats and realleges each and every allegation contained in paragraphs 1 through 30 inclusive, with the same force and effect as though more fully set forth at length herein.

32. That upon information and belief, defendants, P.O. MICHAEL KOVALIK and P.O. "JOHN DOE", who are employed by defendants, THE CITY OF NEW YORK and NEW YORK CITY POICE DEPARTMENT, were acting in the performance of their duties and within the scope of their employment when they committed the sexual assault and battery upon the plaintiff inside the aforementioned New York City Police Department vehicle.

33. That upon information and belief, defendants, P.O. MICHAEL KOVALIK and P.O. "JOHN DOE", who are employed by defendants, THE CITY OF NEW YORK and NEW YORK CITY POICE DEPARTMENT, were acting in the performance of their duties and within the scope of their employment when they witnessed and/or failed to stop the aforesaid sexual assault and battery of the plaintiff.

34. That by reason of the foregoing, the plaintiff, ALLISON KEMP, was damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION

35. Plaintiff repeats and realleges each and every allegation contained in paragraphs 1 through 34 inclusive, with the same force and effect as though more fully set forth at length herein.

36. That the defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, at the time of the above-stated incident herein, knew, should have

known and had reason or opportunity to know, that the agents, servants and/or employees named as defendants in this Complaint were unfit for the employment with which they were hired, unfit for the official duties delegated to them and unfit for the law enforcement responsibilities to which they were assigned.

37. That by hiring, training, retaining, employing, failing to supervise and failing to investigate the aforesaid agents, servants and/or employees, the defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTEMNT, negligently created and caused a situation where it was likely that said agents, servants and/or employees would, as a result of their work history, unfit character, malicious temperament, criminal propensity and inadequate supervision, threaten, assault, sexually assault, batter and strike the plaintiff herein.

38. That the defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, knew or had reason or opportunity to know, in the exercise of due and reasonable care, that the aforesaid agents, servants and/or employees were vicious, potentially dangerous, negligent, and performing criminal and illegal acts during the course of their employment duties.

39. That the defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, were negligent in the hiring, employment, training, retention and supervision of the aforesaid agents, servants and/or employees.

40. That by reason of the foregoing, the plaintiff, ALLISON KEMP, was damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.



WHEREFORE, plaintiff, ALLISON KEMP, demands judgment against the defendants in the First, Second and Third Causes of Action, in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction hereof, together with the costs and disbursements of this action, and any other further relief that this court may deem just and proper.

Dated: New York, New York  
December 7, 2017

Yours, etc.



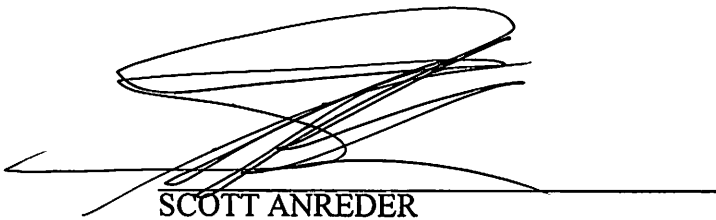
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HABIB GEORGE  
ANREDER & GEORGE, ESQS.  
Attorneys for plaintiff, ALLISON KEMP  
143 West 29<sup>th</sup> Street, Suite 1104  
New York, New York 10001  
(212) 967- 2011

STATE OF NEW YORK     )  
                                  ) ss  
COUNTY OF NEW YORK    )

I, the undersigned, an attorney admitted to practice in the courts of New York State, state under penalty of perjury that I am the attorney for the plaintiff in the within action; I have read the foregoing SUMMONS and VERIFIED COMPLAINT and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe to be true. The reason this verification is made by me and not by my client, is that my client is not presently in the county where I maintain my offices. The grounds of my belief as to all matters not stated upon my own knowledge are the materials in my file and the investigations conducted by my office.

Dated: New York, New York  
December 7, 2017, 2017



SCOTT ANREDER

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SUMMONS AND VERIFIED COMPLAINT  
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LAW OFFICES OF ANREDER & GEORGE

Attorney for Plaintiff

Office and Post Office Address, Telephone

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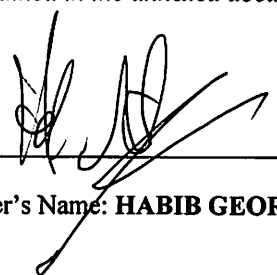
Suite 1104

New York, New York 10001

(212) 967-2011  
=====X

*Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.*

Dated: New York, NY  
December 7, 2017

Signature: 

Print Signer's Name: **HABIB GEORGE, ESQ.**